

Liberty County — Planning & Zoning Review Flow Chart

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Step 1: Determining which type of review

To determine the path for any project, ask one question: **Is this project a Single-Family Home, a Duplex, or an Accessory Structure to one of those?**

- **IF YES:** It is a **Type I Development**. (Proceed to the Administrative Track).
- **IF NO:** It is a **Type II Development** (Commercial, Industrial, Subdivisions, or Multi-family). (Proceed to the Planning Board Track).

Step 2: The administrative track (the "fast track")

Applies to: New houses, barns, sheds, pools, fences, and home additions.

- **Legal Authority:** **Section 3.02.01 (Type I Review)** and **Section 4.6-3(A)(1)**.
- **The Process:**
 1. **Application:** Submit a Building Permit and a Development Permit application.
 2. **The "Site Plan":** Under Section 4.6-3, you are **exempt** from a formal engineered site plan. You only need a "Plot Plan" (a basic sketch showing where the structure sits on the lot).
 3. **The Review:** The **Development Administrator** (Staff) reviews the sketch to ensure the structure meets "Setbacks" (distance from property lines) and isn't in a flood zone.
 4. **Approval:** Staff signs off. No public notice, no ARPC memo, and no board meetings are required.

Step 3: The Planning Board track (the "full review")

Applies to: Stores, gas stations, RV parks, subdivisions, and "Special Exceptions."

- **Legal Authority:** **Section 3.02.02 (Type II Review)** and **Section 4.6-3**.
- **The Process:**
 1. **Professional Site Plan:** Must submit a formal plan meeting the 8 requirements listed in **Section 4.6-3(D)** (Drainage, parking, landscaping, etc.).
 2. **ARPC/Consultant Review:** If the project is over 2 acres or 50,000 sq. ft., the County may send it to the ARPC for a technical study (**Section 4.6-3**).
 3. **Public Hearing:** The project is placed on the agenda for the Planning and Zoning Board and/or the County Commission.
 4. **Board Action:** The Board votes to approve, deny, or approve with conditions.

Step 4: Key definitions for your arguments

If you encounter resistance from staff or the board, use these specific "Definitions" from **Chapter 2** to clarify your position:

- **To prove a barn is a "Minor" project:** Cite **Section 2.01 (Building, Accessory)**. Explain that because it is "incidental to the dominant use" (the house), it stays on the Administrative Track.

- **To prove a pool/barn is exempt from Site Plan Review:** Cite **Section 4.6-3(A)(1)**. This is the specific "Filter" that legally exempts residential accessories from the expensive Planning Board process.
- **To prove who has the power to sign the permit:** Cite **Section 3.02.01**. This section explicitly gives the **Development Administrator** the power to approve Type I projects without a board vote.

Step 5: How to handle "gray areas"

If a project doesn't clearly fit, look for these "Triggers" that force a project into the **Full Planning Board Track**:

1. **Change of Use:** Is a resident trying to run a retail business out of their barn? (This makes it Commercial).
2. **Density:** Is someone trying to put 3 houses on a 1-acre lot? (This violates the Comprehensive Plan).
3. **Special Exceptions:** Is the request for something the code says is "permitted by special exception only" (like a cell tower)?

Summary checklist for staff

- ☐ **Check Chapter 2:** Is the structure "Accessory"?
- ☐ **Check Section 4.6-3:** Is it exempt from Site Plan Review? (Single-family = Yes).
- ☐ **Check Section 3.02.01:** Approve via Development Administrator.